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NOTICE TO OPERATORS
2026-02

March 10, 2026

UPDATED UNDERGROUND INJECTION CONTROL (UIC) PROJECT APPROVAL PROCESS

The California Geologic Energy Management Division (CalGEM), in coordination with the State Water Resources Control Board and Regional Water Quality Control Boards (collectively, Water Boards), is issuing this Notice to Operators to announce updates to the Class II Underground Injection Control (UIC) project approval process. These updates are intended to improve review efficiency, enhance coordination among reviewing agencies, and provide a clearer and more predictable process for operators.

The updated process is planned for implementation on **April 1, 2026**.

To support implementation, CalGEM will host an informational workshop for operators. A virtual meeting invite will be provided separately.

- **Date:** March 17, 2026
- **Time:** 1:00 PM – 3:00 PM
- **Format:** Virtual

UPDATED APPENDICES TO THE REVISED MEMORANDUM OF AGREEMENT (MOA)

The Revised Memorandum of Agreement between CalGEM and the State Water Resources Control Board regarding Underground Injection Control, Discharges to Land, and Related Issues (Revised MOA) is being updated to include new appendices. Since the Revised MOA was last updated in 2018, CalGEM and the Water Boards have gained substantial experience implementing the agreement through actual project reviews. Based on this experience, the agencies identified opportunities to streamline reviews, reduce duplication, and improve interagency coordination.

The Revised MOA will include the following appendices:

Appendix A – Updated Interagency Workflow

Appendix A memorializes the updated UIC project approval workflow and identifies new opportunities for parallel review among CalGEM, including district, UIC Program, CEQA staff, and the Water Boards, where practicable. The updated workflow includes several procedural changes that will directly affect operators.

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The updated workflow:

- Improves efficiency
- Enhances communication
- Allows agency reviews to occur in parallel where feasible

Appendix B – Updated UIC Project Data Requirements (MOA Checklist)

Appendix B contains an updated version of the UIC Project Data Requirements checklist (commonly referred to as the "MOA checklist"). This checklist is used by CalGEM and the Water Boards to coordinate and document interagency review of Class II underground injection projects.

The updated checklist:

- Removes duplicative requirements
- Better documents interagency evaluations
- Improves transparency of agency review responsibilities
- Provides clearer guidance to operators on data and documentation needed to support the application and reduce back and forth communications between the operators and regulators.

Important Note:
The MOA checklist is intended primarily for use by CalGEM and the Water Boards in implementing the Revised MOA. However, CalGEM is highlighting the checklist to inform operators of the information relied upon during interagency review and to assist operators in preparing complete, high-quality applications that align with agency expectations. The checklist will be provided to promote transparency and efficiency in the review process and should be read in conjunction with—and not as a substitute for—all applicable statutes, regulations, and local requirements.

NOTEWORTHY WORKFLOW PROCEDURAL CHANGES

Updated MOA appendices, checklists, and forms to support procedural changes will be found on the "For Operators - Underground Injection Control" webpage by April 1, 2026:
https://www.conservation.ca.gov/calgem/general_information/Pages/UICApplicationGuidance.aspx

1. **Pre-Application Meetings**
   Prior to submitting an *Application for Underground Injection form* in WellSTAR, operators are expected to request a pre-application meeting. CalGEM will coordinate the meeting and include CalGEM district and CEQA staff, and Water Boards staff. Pre-application meetings can be requested utilizing the *UIC Pre-Application Meeting Power Form.*

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The pre-application meeting provides:

- An early overview of the proposed project
- Initial guidance from reviewing agencies
- An opportunity for all stakeholders to ask questions and identify potential issues before an application is submitted

2. **Early Area of Review (AOR) Wellbore Diagram Evaluation**
   After an application passes the intake review (previously referred to as the "completeness check"), CalGEM district engineers will conduct an early review of AOR wellbores, focusing on cement calculation methodology and well construction accuracy.

   The change allows CalGEM to provide operators with earlier feedback on wellbore diagrams, providing more time to address time-consuming updates while CalGEM continues technical evaluation.

3. **Water Boards' Early Review of Beneficial Use Waters**
   Following the intake review, CalGEM will notify the Water Boards to begin early evaluation of water supply wells and identify beneficial use waters of concern in parallel with CalGEM's technical review.

4. **Direct Communication Between Water Boards and Operators**
   During the Water Boards' review, Water Boards staff will work directly with operators to address questions and comments. The Water Boards' comments will no longer be transmitted through CalGEM, although CalGEM should continue to be copied on correspondence between the Water Boards and the operator.

5. **Parallel CEQA and Technical Review**
   CalGEM CEQA staff participation in pre-application meetings and use of the CEQA checklist will allow CEQA review to begin earlier and proceed in parallel with CalGEM technical review and the Water Boards' evaluations.

EXPECTATIONS FOR OPERATORS

CalGEM and the Water Boards have created this updated workflow to enable consistent and more efficient application review while continuing to meet all regulatory requirements and performance standards for the protection of public health, safety, and the environment.

A significant source of delay in the current process is the submission of incomplete or low-quality applications, which require multiple rounds of requests for additional information. These delays affect both project timelines and agency resources.

To fully realize the benefits of the updated workflow, operators are expected to:

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- Submit complete, well-prepared applications that address all regulatory requirements
- Use the updated MOA checklist and CEQA checklist to guide application readiness
- Respond promptly and thoroughly to agency comments

Important Note:
Applications that do not meet requirements found during the intake review will not continue in the review process and will be returned to the operator. For applications that pass intake review and are under technical review, CalGEM reserves the right to deprioritize applications when operators fail to respond within specified deadlines or when the quality of submitted materials remains insufficient after multiple requests for correction. Deprioritized applications may be removed from active review, placed at the end of the processing queue, and experience significant delays in review and processing after higher quality submissions have been completed. CalGEM will notify operators when an application has been deprioritized.

Operators taking advantage of pre-application meetings will help ensure applications are complete and of sufficient quality at the time of submittal.

IMPLEMENTATION

The updated workflow and procedural changes described in this notice will take effect on **April 1, 2026**.

Applications Submitted on or After April 1, 2026

- A pre-application meeting is expected prior to application submittal.
- Operators are expected to come prepared to pre-application meetings to ensure productive use of agency time.
- Applications should be submitted using the updated MOA checklist and CEQA checklist.
- A pre-application meeting request form and example agenda topics will be available on the "For Operators - Underground Injection Control" webpage link above.

Applications Already in Process as of April 1, 2026

The following steps apply to all applications in process as of April 1 and will be determined by the application's status in the WellSTAR review workflow.

Before Legacy Completeness Checks:

- Applications may be returned. If returned, operators are asked to resubmit with the updated MOA checklist and CEQA checklist. Returning applications to

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operators will be based on quality and completeness of the submitted application.
- Resubmitted applications are subject to the updated workflow and a pre-application meeting is expected before resubmittal.

Past Legacy Completeness Check and under CalGEM review:

- CalGEM will continue technical review and communicate with operators if additional information is necessary.
- CalGEM districts will inform the Water Boards of applications ready for water supply well evaluation and beneficial use waters of concern determination.
- When necessary, CEQA information guided by the CEQA checklist should be emailed to the CalGEM district technical lead, who will:
    - Add information to WellSTAR.
    - Notify CEQA staff to review.

Under the Water Boards review:

- Applications will continue with the Water Boards' evaluation. The Water Boards will communicate new comments directly to operators.
- Operators should respond to comments received before April 1, 2026, using the pre-April 1 process by submitting responses to the CalGEM district technical lead for transmittal to the Water Boards.
- When necessary, CEQA information guided by the CEQA checklist should be emailed to the CalGEM district technical lead, who will:
    - Add information to WellSTAR.
    - Notify CEQA staff to review.

Under CEQA review:

- Process remains unchanged for projects where CalGEM is the lead agency.
- When necessary, additional CEQA information guided by the CEQA checklist should be emailed to the CalGEM district technical lead, who will:
    - Add information to WellSTAR.
    - Notify CEQA staff of updated documents.

If you have any questions or concerns regarding this notice, please contact the CalGEM UIC Program at uic.implementation@conservation.ca.gov.

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